

	required documents, additional declaration(s), and any other documents needed to provide the court with the foregoing information and to demonstrate the transaction is fair and reasonable and in Payee's best interest. All filings are ordered to be filed and served at least 20 days before the continued hearing date. <u>Despite the continuance, Petitioner's counsel is ordered to appear for the hearing to address whether the court should issue an order to show cause why monetary sanctions should not be imposed on counsel under Code of Civil Procedure section 177.5 for disregarding the court's prior orders to ensure the payee is properly identified and named as a real party in interest in all petitions counsel files.</u> The court previously provided this admonition to counsel on at least two separate occasions: (1) on June 5, 2025, in the case of <i>In re Assured Management Corporation</i>, case no. 2025-01458602, and (2) on December 18, 2025, in the case of <i>In re: Statutorily Defined Interested Party</i>, case no. 2025-01508513. Specifically, the court admonished counsel to use the complete names of all payees in any future petitions, unless there is a legitimate privacy or other appropriate reason for using a fictitious name and proper procedures are followed. Nonetheless, when counsel filed this case on March 26, 2026, the original petition did not identify Payee by her name or otherwise identify her in any way. Indeed, the original petition did not name Payee, did not include a declaration by Payee, and did not include any of the necessary exhibits that would identify Payee. No basis for failing to identify Payee was offered. Two months later, on May 26, 2026, Petitioner filed a first amended petition that identified Payee and provided the other documents referring to Payee by name. Insurance Code section 10139.5(c)(1) requires every petition for approval of the transfer of structure settlement payments include the payee's name, address, and age. Moreover, Payee is a real party in interest in this case. The failure to identify Payee by her full name in the original petition impedes the ability of the court and other interested parties to verify whether Payee had any prior petitions, and, if so, whether any of them were denied and the reason for the denial. No justification for this failure is provided and it appears to be intentional.
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